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**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION [SPE7L125Q0721]**

☒ ORIGINAL

☐ ADDENDUM

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
Solicitation being issued under FAR 13.5.
3. The supplies required to meet the using activity's needs are described as follows:

NOMEN	NSN	P/N	QUANTITY	EST. VALUE	AMC	AMSC
CONNECTING LINK, RIGID	3040012998100	204-310-101-101	353 EA	\$ [REDACTED]	1	C

Identify end item, weapon system, or class of item:

- This solicitation is for a definite quantity contract DLA Direct requirement, PR 7009053954. Item is used in all versions of H1 Helicopter, aka "The Huey". Item contains Critical Safety Item (CSI) and First Article Testing (Contractor-FAT) requirements.

ESTIMATED BASE VALUE:

- \$ [REDACTED]

4. The statutory authority permitting other than full and open competition is:
 - ☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
 - The following 2 companies listed below are uniquely qualified as they are the only known source(s) with the data or rights to the data necessary to manufacture this item, P/N 204-310-101-101.
 - LORD CORPORATION (76005)
 - BELL TEXTRON INC (97499)

The use of the authority cited below:

- ☒ AMC 1. Suitable for competitive acquisition for the second or subsequent time.

The use of the authority cited is based on:

- ☒ AMSC C. This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing

~~Controlled by: DLA Land and Maritime~~

~~Controlled by: [FLSC]~~

~~CUI Category: PROCURE/SSI~~

~~Distribution/Dissemination Control: FED ONLY~~

~~POC: [REDACTED]~~

DLA Land & Maritime Justification for Other Than Full & Open Competition
(December 2021)

Source Selection Information – See FAR 2.101 and 3.104

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knowledge by the qualified source(s) require acquisition of the part from the approved source(s). The approved source(s) retain data rights, manufacturing knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid.

- Product Specialist, [REDACTED] certified the technical data certifications on 01/15/2025 (attachment 1).
 - DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the Government.
 - There is no outstanding DLA form 339 request for additional sources.
- 6. Efforts to ensure that offers are solicited from as many sources as practicable are:
 - [X] The acquisition will be synopsized on or about SAM.gov 02/04/2025 to 02/18/2025.
 - [X] Solicitation will be posted to DIBBS from 02/10/2025 to 03/10/2025.
- 7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.
 - This is a definite quantity contract, for a quantity of 353 EA. A price analysis will be conducted using historical pricing, Producer Price Index (PPI), and learning curve analysis. Certified Cost or Pricing Data is exempt from this requirement per FAR 15.403-1(c)(3). If the Contracting Officer determines that the product claimed to be commercial is not, and no other exception or waiver applies for it, a request for certified cost or pricing data will be submitted. Offerors may be requested to submit data other than certified cost or pricing data to support a determination of a fair and reasonable price.
- 8. Market Research/Efforts to Obtain Competition:
 - Market research consisted of past procurement(s) review, market survey(s), and internet sources (Google, Haystack, Vendor Websites).
 - No results for the part returned through GSA Advantage when searched.
 - Haystack had no significant technical characteristics listed to utilize.
 - EBS Procurement History:

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Smart Number (PIIN)	Source Type	TIC	Vendor CAGE Code	Vendor Name	Quantity	Unit	Net Price	Award Date	Incoterms	Prc Reas	SAP PO No.	Surplus Material
SPE7LX25P0002	B		04836	JAMAICA BEARINGS CO., INC.	97	EA	6042.35000	10/17/2024	E	BG	8510948972	N
SPE7L324C0020P00003	B		6S0N4	AIRWOLF AEROSPACE LLC	371	EA	6420.00000	3/12/2024	E	BG	8510492729	N
SPE4A223F1455	A		97499	BELL TEXTRON INC	101	EA	7334.25000	11/23/2022	E	FH	8509543136	N
SPE4A522F4999	A		97499	BELL TEXTRON INC	24	EA	7334.25000	1/27/2022	E	FH	8508828990	N
SPE4A521F101A	A		97499	BELL TEXTRON INC	13	EA	7050.00000	7/13/2021	E	FH	8508346669	N
SPE4A521F7986P00001	A	G	97499	BELL TEXTRON INC	13	EA	7050.00000	3/23/2021	E	FH	8508080291	N
SPE4A220F5466	A		97499	BELL TEXTRON INC	12	EA	6608.29000	9/23/2020	E	PF	8507673176	N
SPE4A220F2896	A		97499	BELL TEXTRON INC	42	EA	6415.82000	2/26/2020	E	PF	8507204722	N
SPE4A220F2033P00001	A		97499	BELL TEXTRON INC	29	EA	6415.82000	1/8/2020	E	PF	8507078480	N
SPE4A220F0299P00001	A		97499	BELL TEXTRON INC	35	EA	6415.82000	10/12/2019	E	FH	8506905249	N
SPE4A219F1847P00001	A		97499	BELL TEXTRON INC	10	EA	6415.82000	8/29/2019	E	FH	8506786818	N
SPE4A519F592W	A		97499	BELL TEXTRON INC	8	EA	6415.82000	4/23/2019	E	FH	8506476366	N
SPE4A519F372LP00001	A		97499	BELL TEXTRON INC	10	EA	6110.30000	3/10/2019	E	PF	8506355117	N
SPE4A519F175MP00001	A		97499	BELL TEXTRON INC	8	EA	6110.30000	1/25/2019	E	PF	8506230899	N
SPE4A519F7236	A		97499	BELL TEXTRON INC	18	EA	6110.30000	11/19/2018	E	PF	8506070399	N
SPE4A519F5402	A		97499	BELL TEXTRON INC	23	EA	6110.30000	11/8/2018	E	PF	8506044166	N
SPE4A518F715X	A		97499	BELL TEXTRON INC	138	EA	5415.31000	5/25/2018	E	PF	8505538498	N

- A sources sought notice was posted to SAM.gov on 01/22/2025 to 01/30/2025. A market survey copy was attached in the notice for interested parties to complete and return. No response was received pertaining to sources sought and market survey request on SAM.gov.
- Airwolf Aerospace LLC (6S0N4) has been removed as an approved source in past history after technical review for the item.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

- [X] A market survey was conducted on/during 01/15/2025 – 01/30/2025.

Total number of vendors contacted:

- 2

Vendors who were contacted but didn't respond:

- LORD CORPORATION (76005)
- BELL TEXTRON INC (97499)

Techniques used to conduct survey:

- SAM.gov
- Email Correspondence

Types of information requested:

- Quantity/Price sensitivity
- Offer direct or through dealers
- Business Size
- Commerciality
- Estimated delivery

Summary of information received:

- None

Market Survey follow-up:

DLA Land & Maritime Justification for Other Than Full & Open Competition
(November 2021)

Source Selection Information – See FAR 2.101 and 3.104

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- BELL TEXTRON INC (97499) has been noted in prior J&A for providing no response when reaching out with a market survey. Additional effort to follow-up based on history with the company would most likely result in no further results.
- LORD CORPORATION (76005) was not given a follow-up as the market survey was provided directly to them via email communication and also supplied within the sources sought opportunity to fill and return as a possible interested party.

Information received regarding the commerciality of the item(s):

- This part has been found commercial-of-a-type, satisfying the definition found under FAR 2.101(1)(i): *Any item, other than real property, that is of a type customarily used by the general public or by non-governmental entities for purposes other than governmental purposes, and—has been sold, leased, or licensees to the general public;*. Searching the Defense Contract Management Agency (DCMA) Commercial Item Database (CID) resulted an entry made by DCMA Contracting Officer personnel in 2021 for the part. Under case # S5113A21C0273, part # 201-310-101-101 was found to meet the commercial definition mentioned above. The reasoning given was several Bell helicopters “have been sold to the general public for commercial uses to include offshore transportation, corporate air charter, aerial photography and videography, power line inspections... etc.”. Due to the helicopters being customarily used by the general public, so too are all the components/spares for them (within attachment 2). The Contracting Officer agrees with prior commercial determination on this item made on the case listed above.

9. Additional facts supporting other than full and open competition are:

- [X] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is:

- None

11. The following actions are being taken to identify additional sources:

- [X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items
- [X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification.

- Copy of prior J&A from solicitation SPE7L324R0008 (attachment 3). It was conducted citing the authority of 10 U.S.C. 3204(a)(2) – Urgency.

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I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

MCGEE.JACOB.RA
NDALL.1261425684

Digitally signed by
MCGEE.JACOB.RANDALL.12614
25684
Date: 2025.03.04 11:44:15 -05'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAMIE
E.1251897324

Digitally signed by
WIEBUSCH.JAMIE.1251897324
Date: 2025.03.10 14:49:28 -04'00'

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

☐ Up to \$750,000

Contracting Officer

☒ \$750,000 to \$15,000,000

Competition Advocate

Attachment(s):

MFG Tech Memo for Limited Sources

Market Research for Commerciality Determination Memorandum (MRCDM)

J&A SPE7L324R0008

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